

SYNTHETIC CONTRACT - Supplier maintenance agreement

1. Liability is capped at fees paid or payable in the preceding 12 months. Fraud, willful misconduct, confidentiality and data protection breaches are excluded from the cap.

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2. Supplier will defend and indemnify Company against third-party IP infringement claims arising from supplied goods. Company gives no unlimited indemnity for Supplier misconduct.

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3. Company may terminate for convenience only with 120 days notice and payment of all remaining service fees.

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4. This agreement is governed by the laws of the fictional Republic of Norland, with disputes heard only in its capital.